How much water Waverly will supply

City of Waverly and Apple Creek Water Cooperative | Third Amended Water Purchase Contract

Quantity

Section A.1 / original release p. 17

The agreement allows 3,000,000 gallons per month based on an annual average.

1. **Quality and Quantity.** To furnish the Purchaser at the point of delivery hereinafter specified, during the term of this Contract or any renewal or extension thereof, potable treated water meeting applicable purity standards of the State of Illinois, and the United States Environmental Protection Agency or their successors, in such quantity as may be required by the Purchaser, not to exceed 3,000,000 gallons per month based on an annual average.

Monthly billing

Section A.3 / original release p. 17

The city must issue an itemized statement showing the previous month's deliveries.

3. **Billing Procedure.** To furnish the Purchaser at the above address not later than the 30th day of each month, with an itemized statement of the amount of water furnished the Purchaser during the preceding month. Payments shall be made by Purchaser within ten (10) days thereafter or otherwise the Purchaser shall be obligated to pay a penalty in the amount of ten percent (10%) of the bill. Failure to pay any bill, plus penalties, within sixty (60) days after rendering said bill by the Seller to Purchaser shall be sufficient cause for the suspension of water service under this contract until all delinquent bills, including penalties, are paid in full.

Extended shortages

Section C.4 / original release p. 18

The co-op and the city's customers face proportional reductions in supply.

4. **Failure to Deliver.** The Seller will at all times operate and maintain its system in an efficient manner and will take action as may be necessary to furnish the Purchaser with the quantity of water required by the Purchaser. Temporary or partial failures to deliver water shall be remedied with all possible dispatch. In the event of an extended shortage of water, or if the supply of water available to the Seller is otherwise diminished over an extended period of time, the supply of water to Purchaser shall be reduced or diminished in the same ratio or proportion as the supply to Seller's consumers is reduced or diminished.

Wholesale water rates

City of Waverly and Apple Creek Water Cooperative | Fifth Amended Water Purchase Contract

Rate history

Section C.5 / original release p. 12

The amendment lists these prices per 1,000 gallons.

Nov. 1, 2015	Nov. 1, 2021	Dec. 1, 2023
$3.40	**$4.25**	**$5.00**

Original rate provision

City release p. 12

5. **Modification of Contract.** The provision of this Contract pertaining to the schedule of rates to be paid by the Purchaser for water delivered are subject to modification at the end of every two (2) year period to commence on November 1, 2001. On November 1, 2015 the water rate changed from $3.30 per 1000 gallons to $3.40 per 1000 gallons. On November 1, 2021 the water rate will change from $3.40 per 1000 gallons to $4.25 per 1000 gallons. On December 1, 2023, the water rate will change from $4.25 per 1000 gallons to $5.00 per 1000 gallons. Any increase or decrease in rates shall be based on a demonstrable increase or decrease in the Seller's costs of performance under this agreement. Capital expenditures for improvements to the Seller's water system which will directly benefit the Purchaser's water system may be included in calculating the wholesale water rate to be paid by Purchaser to Seller under this agreement but based only upon Purchaser's prorate share of those costs based upon water purchased by Purchaser to the total water produced by Seller over the previous twenty-four (24) months. Other provisions of this Contract my be modified or altered by mutual agreement.

All other terms and conditions of the original agreement (as attached) shall remain in full effect.